

**LAW AND MOTION TENTATIVE RULINGS**

**DATE: AUGUST 14, 2026 TIME: 8:30 A.M.**

Association has already litigated those very issues. (*Hospital Council of Northern Cal. v. Superior Court* (1973) 30 Cal.App.3d 331, 336 [intervenors are “bound by the record of the action at the time”].) Intervenors “must not enlarge the issues raised by the original parties.” (*Lincoln National Life Ins. Co. v. State Bd. of Equalization* (1994) 30 Cal.App.4<sup>th</sup> 1411, 1422.)

The Association had standing to institute this action without joining its members, did so, obtained a result that failed to please some of its members, and now proposed intervenors seek to overturn or void that order via their complaint in intervention. However, it appears that the proposed complaint would address the issues already determined by this court with some new allegations regarding board members’ alleged self-dealing. The court has already determined that the Association has a duty to enforce what is required under the governing documents, declared that the main pool and the south bluff pool are the Exclusive Use Areas of Units 85 and 534, that the owner(s) of those units have control over who can access the pools, and that centralized, 24-hour on-site management of the visitor accommodation units is required. (Order.)

Further, the authority to manage the business and affairs of an owner’s association is vested in its board of directors, not its members. (*Turner v. Victoria* (21023) 15 Cal.5<sup>th</sup> 99, 113; *Grosset v. Wenass* (2008) 42 Cal.4<sup>th</sup> 1100, 1108.) This includes “the authority to commence, defend, and control actions on behalf of” the association. (*Ibid.*) The decision to pursue a claim on the association’s behalf “falls squarely with the authority vested in” an association’s board. (*Id.* at p. 1114.) “The fundamental purpose of a derivative action is to provide a means by which [a member] may seek to enforce the rights of a[n] [association] when the [ ] board refuses to do so.” (*Ibid.*) Intervention by association members is justified when the association’s board fails to exercise good faith in defending an action against it. (*Cont’l Vinyl Prods. Corp. v. Mead Corp.* (1972) 27 Cal.App.3d 543, 551-552.) Here, the Association did not *refuse* to enforce any rights; instead, it considered the demands, determined they were unwarranted, and then fully litigated the issues related to control of the main and south bluff pools and related recreational facilities.

**No. 24CV00823**

**NIXON v. BENSON et al.**

**(UNOPPOSED) PLAINTIFF’S MOTION TO ENFORCE SETTLEMENT**

Parties to appear to update the Court on their settlement efforts.

This matter was originally set on June 9, 2026, and the Court’s tentative ruling indicated the unopposed motion would be granted and judgment entered pursuant to the terms of the parties’ settlement. Defendants failed to file any timely opposition to that motion. At hearing,

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plaintiff's counsel indicated the parties were working to complete their settlement and needed more time.

“A court ruling on a motion under CCP § 664.6 must determine whether the parties entered into a valid and binding settlement. A settlement is enforceable under section 664.6 only if the parties agreed to all material settlement terms. The court ruling on a motion may consider the parties' declarations and other evidence in deciding what terms the parties agreed to, and the court's factual findings in this regard are reviewed under the substantial evidence standard. If the court determines that the parties entered into an enforceable settlement, it should grant the motion and enter a formal judgment pursuant to the terms of the settlement. The statute expressly provides for the court to enter judgment pursuant to the terms of the settlement.” (*Hines v. Lukes* (2008) 167 Cal.App.4th 1174, 1182, citations omitted.)

“A settlement agreement is a contract, and the legal principles which apply to contracts generally apply to settlement contracts.” (*Weddington Productions, Inc. v. Flick* (1998) 60 Cal.App.4th 793, 810.) An essential element of any contract is mutual consent. (*Id.* at p. 811.)

The parties executed a Memorandum of Settlement, effective October 10, 2025 (see Declaration of DiBenedetto, Exhibit A). They agreed to be bound by its terms; “[i]n order to resolve this dispute, the parties agree as follows:...” The settlement terms included in that Memorandum, listed below, may be confirmed and no further formal settlement agreement would be necessary:

1. Betty Benson, Trustee of the Benson Family Trust A Under Agreement Dated November 30, 1994 (hereinafter “Benson”) grants to Debera Nixon (hereinafter “Nixon”) a non-exclusive easement along their shared border between 527 Middlefield Drive and 529 Middlefield Drive, Aptos. The easement extinguishes upon the removal of the section of the structure at 527 Middlefield Drive that encroaches onto the 529 Middlefield Drive property.

2. Benson agrees to remove approximately 26 and 1/2 linear feet of the small fence demarcating the approximate property line. The fence shall be removed upon payment in full of the monies set forth in Section 3 below.

3. Debera Nixon agrees to pay Betty Benson the sum of \$15,000.

4. Debera Nixon agrees to dismiss her complaint with prejudice against all parties; each side to bear their own fees and costs.

**LAW AND MOTION TENTATIVE RULINGS**

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5. Debera Nixon agrees to limit movement of her garbage and recycling containers to 7 a.m. & 7 p.m., seven days per week.

6. Debera Nixon agrees not to store any garbage or recycling containers to the right side of the window's edge up to the backyard gate of the home at 527 Middlefield Drive.

7. Debera Nixon grants Benson access to 527 Middlefield Drive for purpose of Benson painting or staining or otherwise maintained the shared fence upon reasonable notice.

8. Any work performed by any party along the area of the granted easement shall be performed by licensed contractors with appropriate insurance coverage.

9. Benson agrees to consult with their contractors to address any potential privacy concerns raised by the use of security cameras.

10. Benson permits Nixon to install garden items on the Nixon side of the shared backyard fence.

11. Nixon may install a gate that attached [sic] to the Benson fence post.

12. This agreement with be further memorialized in a written settlement agreement with appropriate documents.<sup>3</sup>

13. This agreement is meant to bind the parties and is enforceable in court per CCP Section 664.6.

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<sup>3</sup> This provision is unnecessary considering the parties have already executed a settlement document.